ADMINISTRATIVE APPEALS TRIBUNAL
GENERAL DIVISION
PERTH REGISTRY **2023/3361, 2023/3363 AND 2023/4494**

VIDA REID, SIMON REID AND FORWARD FOCUSSED GROUP PTY LTD
Applicants
COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS IN REPLY

1. These submissions have been prepared in accordance with the orders of Deputy President Mischin dated 17 October 2023 and in response to the Applicants' submissions (**AS**) dated 16 November 2023.

Observations

2. We acknowledge paragraph 2 of the AS, in particular, that:

    a) Ms Vida Reid does not oppose the application of a stay in relation to her AAT application (2023/3361) and,

    b) at paragraph 19(b), that "the Applicants largely agreed with the Commissioner's application for section 35 orders. They will consent to appropriate orders for a private hearings, non-publication and non-disclosure." Noting if the stay applications are granted that application need not be determined at this time.

3. The Respondent otherwise refutes the allegation (paragraph 16 of the AS) that she has repeatedly breached Tribunal orders and delayed in requesting that these matters be stayed. The Respondent has, at all times, engaged with the Applicants' representatives with a view to progressing the applications in an expeditious and efficient manner.

Submissions in response

4. In response to paragraph 9 of the AS, and the submission that "it cannot be said similar proceedings against Mr Reid are 'on the cards' or a 'reasonable possibility' in sense referred to by Robson J in *Re AWB Limited* [2008] VSC 473", the Respondent submits that delay itself does not negate the "reasonable possibility" of charges being brought.

5. The Respondent draws attention to T8 of Ms Vida Reid's Tribunal bundle, ("Tribunal documents"), a document entitled "Statement of material facts pursuant to section 35

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of the Criminal Procedure Act 2004" which starts at page 149, and in particular the overview set out in the first four paragraphs (repeated here for ease of reference):

> **OVERVIEW**
>
> 1. On 19 October 2020, the National Disability Insurance Agency (NDIA) approved Forward Focused Group Pty Ltd, trading as Forward Focused (FFG), to provide services to National Disability Insurance Scheme (NDIS) participants in Western Australia. Mrs Vida REID (V REID) is the Director, shareholder and joint signatory to the company bank accounts. Mr Simon REID (S REID) is a shareholder, joint signatory to the company bank accounts and former Director.
>
> 2. Hybrid Hive Pty Ltd (HYBRID) is an unregistered provider of services to NDIS participants in Western Australia. The sole Director of HYBRID is V REID. The sole shareholder of HYBRID is The HIVE Pty Ltd (HIVE). The sole Director of HIVE is S REID. The shareholders of HIVE are V REID and S REID. The joint signatories for the HYBRID bank account are V REID and S REID.
>
> 3. It is alleged that, between 26 November 2021 and 22 June 2020, V REID and S REID caused 81 false 'payment requests' to be submitted against the funding of two disabled persons participating in the NDIS, with the intention of dishonestly causing a loss to the Commonwealth.
>
> 4. As a result of these false claims, V REID and S REID received money reasonably suspected of being proceeds of crime to the sum of $247,484.78.

6. In light of this overview the Respondent submits that similar proceedings against Mr Reid are 'on the cards' or a 'reasonable possibility' as referred to by Robson J in *Re AWB Limited* [2008] VSC 473.

7. In response to paragraph 13 of the AS, where it is stated "there is also no evidence before the AAT as to when any criminal trial concerning Ms Reid and FFG may occur", as Ms Reid is represented in her criminal prosecution by the same solicitor that is representing her (and Mr Reid and FFG) in these AAT applications, the Applicants must be aware that the criminal proceedings against Ms Vida Reid have been delayed as a result of a claim of legal professional privilege over electronic information that they themselves have lodged. Further, that the Court directed the parties to resolve this dispute by consent before Christmas and that the matter be listed for mention in February 2024.

8. It is the Respondent's submission that if the Tribunal would be assisted by further detail in relation to the criminal charges brought against Ms Vida Reid and the subsequent prosecution, including the likely timeframe to trial, then the Applicants should be directed to provide this information.

9. In response to paragraph 19(a) of the AS, where it describes the Respondent's submission as a "generalised and vague assertion" that "criminal proceedings will be potentially jeopardised if witnesses to those proceedings also given evidence in these AAT proceedings", the Respondent reiterates that there are numerous references

throughout the documentation stating that complainants were fearful of raising complainants. For example, at page 165 of the Tribunal documents:

> Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022.
>
> The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14).
>
> The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicated that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed.
>
> Example: Complaint #4-38279458621
>
> PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues.
>
> (NAME REDACTED)
>
> “I would like to remain anonymous due to security reasons as I’m scared for my family at this moment in time with most recent events”.

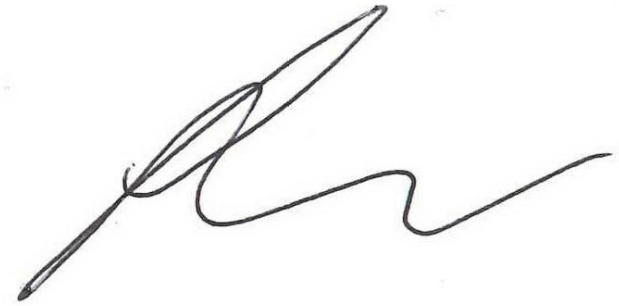
10. The Respondent repeats her submission that criminal proceedings will be potentially jeopardised if witnesses to those proceedings also given evidence in these AAT proceedings.

11. Finally, the Respondent acknowledges the affidavit of Mr Simon Reid and the statements contained therein. In the absence of any supporting documentation of financial hardship and in light of the, not insignificant matters of which Mr Reid is alleged to have been involved in, the Respondent submits that the affidavit should be given little weight.

Summary and Order sought

12. Having regard to the matters referred to above, the Commissioner continues to seek an order that these AAT applications be stayed until the concurrent criminal proceedings or any future criminal proceedings arising from the same set of circumstances has been determined.

Date: 29 November 2023



Oliver Young
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for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent